NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

CA (CAA) 06/2021

Coram:
Hon'ble Shri H. V. Subba Rao, Member (J): Hearing through
Hon'ble Shri Prasanta Kumar Mohanty, Member (T): Video Conference

ATTENDANCE-CUM- ORDER SHEET OF THE HEARING OF GUWAHATI BENCH OF THE NATIONAL COMPANY LAW TRIBUNAL ON 22.03.2021

Name of the Company:	Regional Director, NER, Guwahati V/s Moondhara Traders Pvt. Ltd. & Others
Section of the Companies Act:	Under Section 230 & 232(5) of Companies Act, 2013

S. NO.	NAME (CAPITAL LETTERS)	DESIGNATION	REPRESENTATION	SIGNATURE
1.	MOHD. SHAKEEL	Dy. Director, NER	Petitioner	Present in Video
2.	MR. B. SHARMA	Advocate	Respondents	Conference

O R D E R
Date of Order: 22.03.2021

The matter is taken up for hearing through Video Conferencing. Heard Mohd. Shakeel, Deputy Director appearing for the Petitioner and the Learned Counsel Mr. B. Sharma appearing for the Respondents. Earlier, the RD had submitted that the Transferee Company Wonderland Barter Pvt. Ltd. has failed to disclose the gross turnover of the business. Subsequently, the Transferee Company has filed its submission on 09.03.2021 clarifying the position of turnover quoting the Guidance Note on Tax Audit under Section 44AB of the Income Tax Act, 1961.Mohd. Shakeel, the Deputy Director, NER submits that the Respondent Company is a small Company and the matter should not come to the Regional Director. The Regional Director is directed to file his submission within 15 (fifteen) days from today in this regard

serving copy thereof to the Respondents. It is also observed that no Amalgamation Petition has been filed before this Bench by the Applicants.

2. List the matter on 20.04.2021.

Sd/-	**Sd/-**
(**Prasanta Kumar Mohanty)**	**(H. V. Subba Rao)**
Member (Technical)	**Member (Judicial)**

/Deka-22.03.2021//